

**IN THE UNITED STATES DISTRICT COURT FOR THE
WESTERN DISTRICT OF OKLAHOMA**

UNITED STATES OF AMERICA,)
)
v.) **Case No.** _____
)
)
_____)
)
 Defendant.)

**DEFENDANT'S WAIVER OF APPEARANCE AT
ARRAIGNMENT AND ENTRY OF PLEA OF NOT GUILTY**

I hereby acknowledge that I am the Defendant named above and I have received a copy of the

Indictment filed on _____. (ECF No. _____); or

Superseding Indictment filed on _____. (ECF No. _____).

I understand I have the right to appear personally at my arraignment pursuant to Rule 43 of the Federal Rules of Criminal Procedure, and I have the right to have the indictment and any superseding indictment read to me in open court pursuant to Rule 10 of the Federal Rules of Criminal Procedure. I further understand I have the right to remain silent and if I choose not to remain silent then any statement I make may be used against me.

I have discussed the charge(s) in the indictment or superseding indictment and the waiver of appearance at arraignment with my attorney and I fully understand the nature and substance of the offense(s) charged, the maximum penalties I face if convicted, and my right to appear in person at arraignment. Understanding my rights, **I do hereby freely and voluntarily waive my right to be present at my arraignment on the indictment or superseding indictment referenced above, and my right to have it read to me in open court.**

As evidenced by my signature below, I do hereby enter my plea of **NOT GUILTY** to all charges.

Date Defendant

Date Counsel*

APPROVED:

UNITED STATES MAGISTRATE JUDGE

*By signing this document counsel certifies to the following: (1) Counsel has entered an appearance in this case; (2) Defendant's representations herein are truthful; and (3) the assigned AUSA has been contacted and has no objection to this Waiver.